

25TRCV03581 25TRCV03581

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-31

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Case Number: 25TRCV03581 Hearing Date: August 31, 2026 Dept: P

Superior Court
of California

County of Los
Angeles

Southwest
District

Torrance Dept. P

STEVEN
CHARLES HIGHWART,

Plaintiff

Case No.:

25TRCV03581

vs.

[Tentative]
RULING RE:

DEMURRER
TO PLAINTIFF'S FIRST AMENDED COMPLAINT AND MOTION TO STRIKE

AMAZON.COM

INC.; RYDER SYSTEM INC.; and DOES 1-10, inclusive,

Defendants.

Hearing

Date: August 31, 2026

Department

P, Judge David K. Reinert

Demurrer

to Plaintiff's First Amended Complaint and Motion to Strike

Moving

Party: Defendant

Amazon.com Inc.

Responding Party: Plaintiff Steven Charles Highwart

RULING

The court

considered the moving papers, opposition, and reply. Amazon's Demurrer to the FAC is OVERRULED. Amazon's Motion to Strike is

GRANTED in its entirety, with leave to amend Plaintiff's prayer for damages.

PROCEDURAL BACKGROUND

On October 17, 2025, Plaintiff Steven Charles Highwart ("Plaintiff") filed a complaint against Defendants Amazon.com Inc. ("Amazon"), Ryder System Inc. ("Ryder"), and DOES 1 through 10, inclusive, alleging three causes of action for: (1) Intentional Tort; (2) Motor Vehicle; and (3) General Negligence.

On May 12, 2026, Plaintiff filed a first amended complaint ("FAC") against Amazon, Ryder, and DOES 1 through 10, inclusive, alleging the same three causes of action.

On July 31, and August 3, 2026, Amazon filed the instant Demurrer and Motion

to Strike. On August 17, 2026, Plaintiff filed an opposition. On August 24, 2026, Amazon filed a reply.

FACTUAL BACKGROUND

Plaintiff

alleges that on November 19, 2023, Defendant Doe 2, wearing a vest with the word “AMAZON” written on it, arrived at the location where Plaintiff resided and parked the truck he was driving, which had the word “Ryder” written on it. (FAC, p. 4.) Plaintiff alleges that Defendant Doe 2 made a delivery before returning to the truck, parking at the front end of Plaintiff’s driveway, and exiting the truck to deliver another package. (FAC, p. 4.) Plaintiff alleges that he subsequently complained that Defendant Doe 2 was playing his music too loud, after which Defendant Doe 2 returned to his vehicle and shoved Plaintiff to the ground. (FAC, p. 4.) Plaintiff alleges that Defendant Doe 2 entered his truck and attempted to drive the truck over Plaintiff, causing Plaintiff to dive onto a hood of a nearby parked vehicle. (FAC, p. 4.) Plaintiff alleges that he has sustained injuries including a fractured wrist, lost wages, and lost earning capacity. (FAC, p. 4.) Plaintiff alleges that Defendant Doe 2 was employed by Amazon and was acting within the course and scope of his employment and further alleges that Defendant Doe 2 was a permissive user of the Ryder truck. (FAC, p. 5.)

LEGAL STANDARD

A party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc. Section 430.10(e).) A party may also demur to a pleading on the grounds that the pleading is uncertain. (Code Civ. Proc. Section 430.10(f).) A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) A special demurrer for uncertainty under Code of Civil Procedure section 430.10(f) is disfavored and will only be sustained where the pleading is so bad that defendant or plaintiff cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (Khoury v. Maly’s of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.)

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When considering demurrers, courts accept all well pleaded facts as true.

(Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.” (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, supra, 147 Cal.App.4th at 747.) On demurrer, a court does “not accept contentions, deductions or conclusions of fact or law.” (Simonyan v. Nationwide Insurance Company of America (2022) 78 Cal.App.5th 889, 895.)

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Although courts construe pleadings liberally, sufficient facts must be alleged to support the allegations pled to survive a demurrer. (Rakestraw v. California Physicians' Serv. (2000) 81 Cal.App.4th 39, 43.) Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on the party who filed the pleading subject to demurrer to show the court that a pleading can be amended successfully. (Ibid.)

DISCUSSION

Moving Party's Argument

Amazon demurs to Plaintiff's second and third causes of action on the grounds that Plaintiff's allegation that Defendant Doe 2 was employed by Amazon and was acting within the course and scope of employment is conclusory. Next, Amazon argues that Plaintiff has not alleged that Amazon owned the truck allegedly involved in the incident. Amazon argues that Plaintiff has failed to plead facts showing what Amazon did or failed to do in hiring, supervising, training, or entrusting the Doe Defendants.

Amazon moves to strike the references in the FAC to the specific amounts of damages sought and all references to Amazon in Plaintiff's exemplary damages attachment. Amazon argues that pursuant to Code of Civil Procedure Section 425.10, a complaint that seeks to recover actual or punitive damages for personal injury must not state the amount. Amazon further argues that the FAC fails to allege sufficiently specific facts to support a claim for exemplary

damages against Amazon, instead alleging only that Amazon ratified Defendant Doe 2's conduct.

Opposing Party's Argument

Plaintiff argues that Amazon has ignored Plaintiff's allegation that Defendant Doe 2 was wearing a vest with "AMAZON" written on it and argues that Plaintiff has used the approved Judicial Counsel Form pleading and thus the language of the FAC is adequate to allege Amazon's liability. Plaintiff argues that the ownership of the subject motor vehicle does not affect the sufficiency of Plaintiff's second cause of action because Plaintiff has alleged that Defendant Doe 2 was operating his vehicle in the course and scope of employment with Amazon, which is distinguished from ownership.

Regarding Amazon's Motion to Strike, Plaintiff concedes that the specific amounts of damages should be stricken from the FAC. Plaintiff states that he has filed a proposed second amended complaint along with his opposition papers, and argues that Amazon is no longer named in the proposed second amended complaint's exemplary damages attachment.

Reply Argument

Amazon argues that Plaintiff's Motor Vehicle cause of action fails because Plaintiff has not alleged facts showing that Amazon owned and entrusted the Ryder-branded truck to Defendant Doe 2. Amazon argues that Vehicle Code Section 17150 imposes liability on a vehicle owner, and Plaintiff has not alleged facts showing that Amazon owned the truck or that Amazon had an employer-employee relationship with Ryder. Amazon argues that Plaintiff's General Negligence cause of action fails because Plaintiff's allegations are conclusory. Amazon reiterates its argument that the court should strike any references to Amazon in Plaintiff's exemplary damages attachment.

Merits of the Motion

A.

Meet and Confer Requirements

Before filing a demurrer, the demurring party is required to meet and confer "in person, by telephone, or by video conference with the party who filed the pleading that is subject to the demurrer for the purposes of

determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc. Section 430.41(a).)

Amazon’s counsel declares that on June 17, 2026, he telephonically met and conferred with Plaintiff’s counsel, and the parties did not reach an agreement. (Agee Decl., ¶ 3.) Therefore, the court finds that the meet and confer requirements have been satisfied.

B.

Second and Third Causes of Action: Motor Vehicle and Negligence

In order to state a claim for negligence, Plaintiff must allege the elements of (1) “the existence of a legal duty of care,” (2) “breach of that duty,” and (3) “proximate cause resulting in an injury.” (McIntyre v. Colonies-Pacific, LLC (2014) 228 Cal.App.4th 664, 671.)

Amazon argues that Plaintiff’s second and third causes of action fail because they are based on conclusory allegations without sufficient factual support. In Plaintiff’s second cause of action for Motor Vehicle, Plaintiff alleges that Defendant Doe 2 was employed by Amazon and was acting with the course and scope of “said agency employment.” (FAC, p. 5.) Similarly, in Plaintiff’s third cause of action, Plaintiff alleges that Amazon “negligently hired, supervised, trained, entrusted Defendant Doe 1, 2, and 3.” (FAC, p. 6.) Plaintiff further alleges that Amazon and Ryder owned the motor vehicle involved and entrusted the motor vehicle. (FAC, p. 5.)

As noted by Plaintiff, Plaintiff’s second and third causes of action incorporate the allegations of Plaintiff’s first cause of action for Intentional Tort. In Plaintiff’s first cause of action, Plaintiff alleges that Defendant Doe 2 was “wearing a vest with the words AMAZON clearly written on it,” and was delivering packages from his truck. (FAC, p. 4.) Therefore, the operation of a motor vehicle without due care for others (as described in the first cause of action against the individual) is incorporated into the second cause of action against the Moving Defendant.

Moreover,

Plaintiff has alleged that Amazon owned the motor vehicle involved in the incident, and thus Plaintiff has pleaded ownership liability against Amazon. (FAC, p. 5.) Under California law, every owner of a motor vehicle is liable and responsible for injuries caused by an individual operating the vehicle with the owner's permission. (See Cal. Vehicle Code Section 17150; *Marquez v. Enterprise Rent-A-Car*, (1997) 53 Cal.App.4th 319, 322; *Rashtian v. BRAC-BH, Inc.*, (1992) 9 Cal.App.4th 1847, 1852.) This liability is separate from respondeat superior liability.

Finally, negligence may be pleaded generally. (*Landeros v. Flood* (1976) 17 Cal.3d 399, 407-408.) Therefore, the court finds that Plaintiff's allegations that Amazon owned and entrusted the motor vehicle involved in the incident to the Doe Defendants are sufficient to survive a demurrer.

Accordingly,
Amazon's Demurrer is OVERRULED in its entirety.

C.

Motion to Strike

The court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc. Section 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc. Section 436(b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc. Section 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc. Section 437(a).)

Amazon moves to strike Plaintiff's references in the FAC to specific amounts of damages in addition to the references to Amazon within the FAC's exemplary damages attachment.

Here, Plaintiff prays for a total of \$5,000,000.00 in damages, consisting of compensatory damages and \$2,500,000.00 in exemplary damages. (FAC, pp. 3, 7.) Plaintiff has conceded that the specific amounts of damages prayed for in

the FAC must be stricken.

Pursuant to Code of Civil Procedure Section 425.10(b), “where an action is brought to recover actual or punitive damages for personal injury or wrongful death, the amount demanded shall not be stated...” (Code of Civil Procedure Section 425.10(b).)

Therefore, Amazon’s Motion to Strike the FAC’s references to specific damages amounts is GRANTED.

Next, Amazon moves to strike Plaintiff’s request for exemplary damages against Amazon. The court notes that the FAC’s exemplary damages attachment states that exemplary damages are sought against Defendants Does 2 and 3 rather than Amazon. However, the FAC’s exemplary damages attachment alleges that “Co-Defendants Amazon and Amazon.com also ratified the wrongful and malicious conduct of Doe 2 by refusing to acknowledge Plaintiff’s complaints, provide information or render care to him.” (FAC, p. 7.) Because Plaintiff is only seeking exemplary damages against Defendants Does 2 and 3, the court finds that the allegation regarding Amazon is irrelevant.

Accordingly, Amazon’s Motion to Strike is GRANTED in its entirety.

D.

Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 (“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”).) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

Because stating specific damages amounts in Plaintiff’s personal injury action is improper pursuant to Code of Civil Procedure Section 425.10(b), the court GRANTS Plaintiff leave to amend the FAC to reflect that the amount of damages is according to proof. Next, because Plaintiff has confirmed in his opposition brief that he does not seek exemplary damages against Amazon, the court DENIES Plaintiff leave to amend the FAC’s exemplary damages allegations regarding Amazon.

CONCLUSION

Based on the foregoing, Amazon's Demurrer to the FAC is OVERRULED. Amazon's Motion to Strike is GRANTED in its entirety, with leave to amend Plaintiff's prayer for damages only.

Plaintiff is to file and serve any amended pleading within 30 days. Moving party is ordered to give notice of ruling.